

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601-RP-DH

v.

**THE UNIVERSITY OF TEXAS AT
AUSTIN; EMILY HSIAO; JAMES G.
SCOTT; SALLY K. RAGSDALE; JAY
BARTROFF; KELLI BRADLEY; and
JEFF GRAVES**, Defendants.

**PLAINTIFF’S MOTION TO RECONSIDER TEXT ORDER DENYING
PRELIMINARY-INJUNCTION MOTION**

Plaintiff Cory J. Bennett respectfully moves under Federal Rule of Civil Procedure 54(b) to revise the Court’s July 2, 2026 text order denying Plaintiff’s Motion for Preliminary Injunction and Request for Expedited Consideration, Dkt. 8 (the “PI Motion”), and dismissing the request to expedite. Plaintiff asks the Court to reinstate the PI Motion for consideration once proof of service or another form of notice accepted under Rule 65(a)(1) appears on the docket (“Court-approved notice”). The requested reinstatement would preserve Defendants’ opportunity to respond while allowing the Court to consider Dkt. 8 without requiring Plaintiff to refile the same motion.

Plaintiff executed the PI Motion on June 29, 2026. It appeared on the docket on July 1, 2026. On July 2, 2026, the Court denied the PI Motion under Rule 65(a) because Plaintiff had not shown that Defendants had received notice of the motion or the lawsuit. The text order did not state that the denial was without prejudice or identify a procedure for considering Dkt. 8 after notice.

Rule 65(a)(1) requires notice before the Court issues a preliminary injunction. The PI Motion followed that requirement by asking the Court to set any preliminary-injunction schedule only after Defendants received service or Court-approved notice. The motion stated:

After Defendants receive service or another form of notice the Court accepts under Rule 65(a)(1), Plaintiff requests a response deadline seven days after notice, a reply deadline three days after any response, and a prompt hearing or submission setting. Plaintiff alternatively requests any expedited schedule the Court finds sufficient to allow a ruling before the Fall 2026 registration and add deadlines.

The PI Motion also stated:

No Defendant has appeared, and there is presently no opposing counsel with whom Plaintiff can confer regarding this motion. Plaintiff does not characterize the motion as unopposed. The requested expedited schedule should run from service or another form of notice the Court accepts under Rule 65(a)(1), not from the filing date.

Together, those passages asked the Court to keep the PI Motion available for consideration after notice while preserving time for a ruling before the Fall 2026 registration and add deadlines.

Plaintiff could not show completed notice when the PI Motion was filed because Plaintiff had not received, by mail or otherwise, the summons or any Clerk-provided instructions for service or electronic filing. The PI Motion therefore asked that all deadlines run from service or Court-approved notice.

Leaving Dkt. 8 denied would require a new filing before the Court considers the same preliminary-injunction request after notice. Reinstatement would keep the existing motion before the Court for Rule 65(a)(1) consideration once Defendants have an opportunity to respond.

Requested Relief

Plaintiff asks the Court to revise the July 2, 2026 text order by reinstating Dkt. 8 for consideration after proof of service or Court-approved notice appears on the docket. Plaintiff also asks that any expedited schedule give Defendants time to respond.

Respectfully submitted,

Dated: July 3, 2026

Cory Bennett

Cory J. Bennett, Plaintiff Pro Se
Mailing Address: 6705 W Highway 290
Ste 607 PMB #268
City/State/ZIP: Austin, TX 78735-8407
Telephone: (512) 630-5607
Fax: None
Email: csquaredbennett@gmail.com